

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX-----X  
DIANA ADDO,

Plaintiff,

-against-

THE CITY OF NEW YORK, ERIKA GIL  
and KELVIN WHITE,Defendants,  
-----X

Index #:

Date Purchased:

Plaintiff(s) designates  
BRONX

County as the place of trial

The basis of the venue is the county  
in which the action arose

## SUMMONS WITH NOTICE

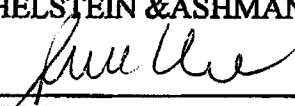
Plaintiff resides at  
1064 Teller Avenue  
County of Bronx

## TO THE ABOVE-NAMED DEFENDANTS:

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York  
August 25, 2020

MICHELSTEIN &amp; ASHMAN, PLLC

By: 

RICHARD A. ASHMAN, ESQ.

Attorneys for Plaintiff

485 Madison Avenue

New York, New York 10022

(212)588-0880

Notice: The nature of this action is as follows: False arrest &amp; malicious prosecution

The relief sought is as follows: Money damages

## UPON YOUR FAILURE TO APPEAR:

Judgment will be taken against you by default for a sum exceeding the jurisdictional limits of any other court which would have jurisdiction over this action, with interest and the costs of this action.

**Defendant's addresses:**

THE CITY OF NEW YORK  
c/o Corporation Counsel  
100 Church Street  
New York, New York 10007

ERIKA GIL  
c/o 48th Precinct  
450 Cross Bronx Expressway  
Bronx, New York 10457

KELVIN WHITE  
c/o 48th Precinct  
450 Cross Bronx Expressway  
Bronx, New York 10457

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
DIANA ADDO,

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK, ERIKA GIL and  
KELVIN WHITE,

Defendants  
-----X

Plaintiff, by her attorneys, MICHELSTEIN & ASHMAN, PLLC, complaining of the  
defendants, alleges, upon information and belief, the following:

**FOR A FIRST CAUSE OF ACTION**

1. The plaintiff is a resident of the County of Bronx, City and State of New York.
2. Defendant THE CITY OF NEW YORK was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. On December 12, 2019, and within ninety days of the accrual of the causes of action herein, the plaintiff served upon the Comptroller of the City of New York her Notice of Claim setting forth the time when, the place where and the manner in which her causes of action herein arose.
4. More than thirty days have elapsed since plaintiff DIANA ADDO's Notice of Claim was served upon defendant THE CITY OF NEW YORK and said defendant has neglected and/or refused to make an adjustment or payment.
5. Upon information and belief, at all times herein mentioned, defendant ERIKA GIL was employed by defendant THE CITY OF NEW YORK.

6. Upon information and belief, at all times herein mentioned, defendant ERIKA GIL was employed by defendant THE CITY OF NEW YORK as a police officer.

7. Upon information and belief, at all times herein mentioned, defendant ERIKA GIL was acting within the scope of her employment as a police officer by defendant THE CITY OF NEW YORK.

8. Upon information and belief, at all times herein mentioned, defendant KELVIN WHITE was employed by defendant THE CITY OF NEW YORK.

9. Upon information and belief, at all times herein mentioned, defendant KELVIN WHITE was employed by defendant THE CITY OF NEW YORK as a police officer.

10. Upon information and belief, at all times herein mentioned, defendant KELVIN WHITE was acting within the scope of his employment as a police officer by defendant THE CITY OF NEW YORK.

11. Upon information and belief, on September 28, 2019, defendant ERIKA GIL forcibly pushed plaintiff DIANA ADDO to the ground.

12. Upon information and belief, the act of defendant ERIKA GIL in forcibly pushing plaintiff DIANA ADDO to the ground was intentional.

13. Upon information and belief, the act of defendant ERIKA GIL in forcibly pushing plaintiff DIANA ADDO to the ground was committed with the intent to cause injury to the plaintiff.

14. Plaintiff DIANA ADDO did not consent to be forcibly pushed to the ground.

15. The act of defendant ERIKA GIL of pushing plaintiff DIANA ADDO to the ground constituted battery on the person of plaintiff DIANA ADDO.

16. Upon information and belief, as a result of the foregoing, plaintiff DIANA ADDO was injured.

17. Upon information and belief, as a result of the foregoing, plaintiff DIANA ADDO suffered substantial pain.

18. This action falls within one or more of the exceptions set forth in CPLR 1602.

19. As a result of the battery by defendant ERIKA GIL, plaintiff DIANA ADDO has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction.

### **FOR A SECOND CAUSE OF ACTION**

20. Plaintiff repeats, reiterates and realleges each and every allegation set for in paragraphs "1" through "19" inclusive with the same force and effect as if more fully set forth herein at length.

21. Upon information and belief, on September 28, 2019, following the attack by defendant ERIKA GIL, plaintiff DIANA ADDO called 911 and requested that a supervising officer respond to the scene with respect to the attack by defendant ERIKA GIL.

22. Upon information and belief, following the plaintiff's call to 911, numerous additional police officers arrived at the scene.

23. Upon information and belief, the additional police officers who responded to the scene spoke with defendant ERIKA GIL.

24. Upon information and belief, none of the additional police officers who responded to the scene spoke to plaintiff DIANA ADDO.

25. Upon information and belief, following conversation between the additional police officers who responded to the scene and defendant ERIKA GIL, defendant ERIKA GIL arrested plaintiff DIANA ADDO and charged the plaintiff with the crime of Obstructing Governmental Administration in the Second Degree and the violation of Disorderly Conduct.

26. The aforesaid criminal charges were false.

27. Upon information and belief, defendant KELVIN WHITE participated in the arrest of the plaintiff.

28. Upon information and belief, the defendants thereupon detained plaintiff DIANA ADDO for a period of time.

29. Upon information and belief, the defendants thereupon caused plaintiff DIANA ADDO to be imprisoned for a period of time.

30. Upon information and belief, the aforesaid seizure, arrest, detention, and imprisonment of plaintiff DIANA ADDO was made without any warrant or other legal process directing or authorizing her seizure, arrest, detention or imprisonment.

31. Upon information and belief, the aforesaid seizure, arrest, detention and imprisonment of plaintiff DIANA ADDO was made without probable cause.

32. Upon information and belief, the defendants intended to imprison plaintiff DIANA ADDO.

33. Upon information and belief, plaintiff DIANA ADDO was aware of her seizure, arrest, detention and imprisonment by the defendants.

34. Plaintiff DIANA ADDO did not consent to her seizure, arrest, detention and imprisonment by the defendants.

35. Upon information and belief, plaintiff DIANA ADDO was imprisoned until her arraignment on September 29, 2019, when she was released on her own recognizance.

36. As a result of the foregoing, plaintiff DIANA ADDO was deprived of her liberty, was imprisoned, was greatly humiliated, and was subjected to mental and physical distress and embarrassment.

37. As a result of the foregoing, plaintiff DIANA ADDO has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction.

**FOR A THIRD CAUSE OF ACTION**

38. Plaintiff repeats, reiterates and realleges each and every allegation set for in paragraphs "1" through "37" inclusive with the same force and effect as if more fully set forth herein at length.

39. Upon information and belief, on September 28, 2019, upon arresting plaintiff DIANA ADDO, defendant KELVIN WHITE handcuffed plaintiff DIANA ADDO.

40. The act of defendant KELVIN WHITE in handcuffing plaintiff DIANA ADDO constituted an assault and battery on the person of plaintiff DIANA ADDO.

41. As a result of the foregoing, plaintiff DIANA ADDO was injured.

42. As a result of the foregoing, plaintiff DIANA ADDO suffered severe pain.

43. As a result of the assault and battery by defendant KELVIN WHITE, plaintiff DIANA ADDO has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction.

**FOR A FOURTH CAUSE OF ACTION**

44. Plaintiff repeats, reiterates and realleges each and every allegation set for in paragraphs "1" through "43" inclusive with the same force and effect as if more fully set forth herein at length.

45. Upon information and belief, on or about September 29, 2019, defendant ERIKA GIL instituted a criminal proceeding against plaintiff DIANA ADDO in the Criminal Court of the City of New York, County of Bronx, charging plaintiff DIANA ADDO with the commission of the

crime of Obstructing Governmental Administration in the Second Degree and the violation of Disorderly Conduct.

46. Upon information and belief, the aforesaid criminal charges were made without probable cause.

47. Upon information and belief, the aforesaid criminal charges against plaintiff DIANA ADDO were false.

48. Upon information and belief, the aforesaid criminal charges were made by defendant ERIKA GIL with malice.

49. Upon information and belief, the aforesaid criminal charges were made by defendant ERIKA GIL with knowledge that they were false.

50. The aforesaid criminal charges were dismissed on October 30, 2019.

51. The institution by defendant ERIKA GIL of false criminal charges against plaintiff DIANA ADDO constituted malicious prosecution.

52. As a result of the false criminal proceeding instituted by the defendants, plaintiff DIANA ADDO was exposed to public ridicule, scorn, humiliation and embarrassment.

WHEREFORE, plaintiff demands judgment on the First Cause of Action, on the Second Cause of Action, on the Third Cause of Action and on the Fourth Cause of Action against defendants THE CITY OF NEW YORK, ERIKA GIL and KELVIN WHITE in amounts which exceed the jurisdictional limits of all lower courts which might otherwise have jurisdiction, with interest from the 28th day of September, 2019, together with the costs and disbursements of this action.

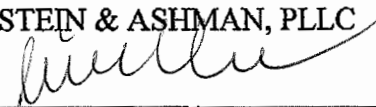
Dated: New York, New York  
August 25, 2020



Yours, etc.

MICHELSTEIN & ASHMAN, PLLC

By: \_\_\_\_\_

  
RICHARD A. ASHMAN, ESQ.

Attorneys for Plaintiff  
485 Madison Avenue, 16<sup>th</sup> Floor  
New York, New York 10022  
(212) 588-0880

ATTORNEY'S VERIFICATION

STATE OF NEW YORK     )  
                                  ) ss.:  
COUNTY OF NEW YORK    )

The undersigned, an attorney admitted to practice in the Courts of the State of New York, affirms, under penalty of perjury, the following:

Affirmant is the attorney for the plaintiff in the within action, that deponent has read the foregoing Complaint and knows the contents thereof; that the same is true to affirmant's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, affirmant believes it to be true.

Affirmant further states that the reason this verification is made by affirmant and not by the plaintiff is that the plaintiff is not a resident of the County in which affirmant maintains his office.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are as follows: documents in affirmant's file and conversations with the plaintiff.

Dated: New York, New York  
August 25, 2020

  
\_\_\_\_\_  
Richard A. Ashman, Esq.

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

---

DIANA ADDO,

Plaintiff,

- against -

THE CITY OF NEW YORK, ERIKA GIL and  
KELVIN WHITE,

Defendants

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SUMMONS & VERIFIED COMPLAINT

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**MICHELSTEIN & ASHMAN, P LLC**

***Attorneys for Plaintiff***

485 Madison Avenue, 16<sup>th</sup> Floor

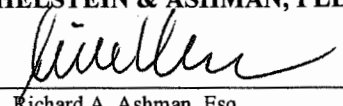
New York, New York 10022

(212)588-0880

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CERTIFICATION PURSUANT TO PART 130:

**MICHELSTEIN & ASHMAN, PLLC**

By: 

Richard A. Ashman, Esq.

**Attorneys for Plaintiff**

485 Madison Avenue, Suite 1600

New York, New York 10022